Revision Date:
December 1, 2024

Background:
The Assistance Unit (AU) is defined as a group of related persons, living in the same home, who have been determined eligible for CalWORKs. An AU will be established when all eligibility factors have been determined.

Purpose:
The purpose of this section is to define the minimum requirements to establishing the AU, differentiate between the AU members, non-AU members and optional persons to the AU. This material revision is due to sunset date review. No policy or procedure changes have been made.

Policy:
Filing Unit
Individuals required to be included on the Statement of Facts are considered the Filing Unit. In addition, optional persons must be included on the Statement of Facts when aid is requested for them and they are living in the home of an applicant child.

The Filing Unit (also referred to as the "Family Unit" or "Big MAP" (Maximum Aid Payment)) includes all members of the AU plus certain non-AU members living in the home including:
- The spouse of an aided child.
- Ineligible undocumented noncitizens.
- Fleeing felons.

Persons receiving Supplemental Security Income/State Supplementary Payment (SSI/SSP) are not included as filing unit members.

Mandatorily Included Persons in the Filing Unit
- Applicant child.
- Siblings and half-siblings of the applicant child.
- Parents of mandatory children.
- A pregnant person, in a one-person unit (Pregnant Person Only – PPO).
- The following adults, if seeking aid, when there is a child receiving SSI/SSP or the child is sanctioned by the Employment Services (ES) program:
  - The child's parent(s).
  - Caretaker relative.
  - Stepparent or domestic partner of the child's parent.
- Senior parent of minor parent seeking aid for the minor parent's child.
- Sponsor of a documented noncitizen.
- Spouse or California domestic partner of persons mandatorily included in the filing unit.

Optional Persons in the Filing Unit

- A nonparent relative who has been determined to be the caretaker relative of the eligible child(ren).
- Other eligible children, including but not limited to a grandchild, niece or nephew.
- Alternatively Sentenced Parent (ASP)*.
  *An ASP is a parent who is a convicted offender permitted to live at home while serving a court-imposed sentence that precludes the parent from providing support through paid employment.

Maximum Aid Payment

The MAP level is determined by an evaluation of the AU's status as either exempt or non-exempt.

Eligible Child

An eligible child is:

- A member of an income eligible AU.
- Deprived of parental support and care.
- Under 18 years of age or an 18-year-old who meets the age requirements.

Note: Effective January 1, 2016, a deceased child will continue to be included as a member of a family receiving CalWORKs for the month in which his or her death occurred, and the following month.

Penalties

Penalties may be assessed for immunization problem, school attendance problem, persons committing fraud. Also refer to CPG 41-500.E for Excluded Sanctioned Persons.

The penalized person's needs are not considered when determining the AU's financial eligibility and computing the grant amount. However, the person remains in the AU as an active recipient. As an AU member, the person continues to receive cash-linked Medi-Cal, is required to participate in ES activities unless exempt and has time on aid counted against the Time On Aid (TOA) limit. All income of the penalized person is used in the AU's eligibility and grant determination, and all appropriate income disregards are allowed.

Procedure:

None.

Program Impacts:

None.

References:

- EAS 82-800, 82-832.1.
- ACLs No. 14-100, 15-18, 15-92.
- ACINs No. I-02-16, I-13-16, I-03-20.
- CFLs No. 14-15-60, 14-15-61.

Sunset Date:

This policy will be reviewed for continuance by December 31, 2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services